

MOTION TO MODIFY CUSTODY, PARENTING TIME, AND SUPPORT – DE NOVO HEARING REQUEST

STATE OF MICHIGAN
IN THE 14TH JUDICIAL CIRCUIT COURT
FOR THE COUNTY OF MUSKEGON

Case No.: 2024-001507-DC

ANDREW J. PIGORS, Plaintiff
v.
EMILY WATSON, Defendant

NOW COMES Plaintiff, ANDREW J. PIGORS, in propria persona, and respectfully moves this Court to enter an order modifying legal and physical custody, parenting time, and child support, and to consolidate these matters for hearing at the pending De Novo hearing. In support of this Motion, Plaintiff states as follows:

1. Plaintiff is the biological father of the minor child, LDW, born November 9, 2022.
2. A valid Established Custodial Environment (ECE) existed until parenting time was unilaterally disrupted by Defendant without court order.
3. Plaintiff previously exercised 50/50 parenting time under an informal week-on/week-off schedule from November 2023 to March 26, 2024.
4. Defendant has withheld parenting time on multiple occasions without legal justification, including from March 26 to May 6, 2024, and from April 6 to May 2, 2025.
5. These actions constitute obstruction of parenting time and contribute to a pattern of parental alienation and psychological harm to the child, violating MCL 722.27a(9) and the Best Interests factors under MCL 722.23(j) and (k).
6. Defendant has misused a PPO proceeding (Case No. 2023-5907-PP) to interfere with Plaintiff's custodial rights, often using the PPO to stage violations during parenting exchanges.
7. Plaintiff has provided consistent developmental care, emotional support, and educational activities during his parenting time, and maintains a stable home environment at 1977 Whitehall Rd Lot 17.
8. Defendant has refused to share medical information, including vaccination records and appointment history, in violation of MCL 722.27(1)(c).

9. Plaintiff requests a De Novo hearing on all related matters to modify custody to joint legal and physical custody with a 50/50 parenting schedule, reinstate all withheld time, and update child support accordingly.

10. Plaintiff requests that all issues be consolidated for De Novo hearing pursuant to MCR 3.211(B)(5), MCL 722.27(1)(c), and *Vodvarka v. Grasmeyer*, 259 Mich App 499 (2003).

WHEREFORE, Plaintiff respectfully requests that this Court enter an order granting the requested modifications, consolidating all issues for De Novo hearing, and awarding any other relief deemed just and proper.

Respectfully submitted,

/s/ Andrew J. Pigors
Andrew J. Pigors, In Propria Persona
1977 Whitehall Rd Lot 17
Muskegon, MI 49445
andrewjpigors@gmail.com
(231) 903-5690